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One-Party State - Legislature fights against transparency

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“Transparency in government is paramount,” said Assemblywoman Gail Pellerin, D-Santa Cruz, proving that hypocrisy in government is clearly the rule in California. As chair of the Committee on Elections and Redistricting, Pellerin praised “transparency” as she voted to kill a bill that would have banned non-disclosure agreements (NDAs) from the bill-making process.

The bill, Assembly Bill 2654, was in response to a report by KCRA’s Ashley Zavala, who broke the news that special interest groups had signed NDAs when secretly negotiating bills that set wages, working hours, and other working conditions at fast food restaurants last year.

Pellerin claimed that her opposition to the NDA bill wasn’t based on substance, but rather the limited time legislators had to review it. The bill had been in her committee for just three days and in print for only seven.

“This rushed process, which necessitated an expedited hearing by this committee, prevented this bill from receiving the level of scrutiny and analysis that bills normally receive before being

heard,” she said. “It has also restricted the public’s ability to review and analyze this bill and to provide public comment.”

We’d agree with the assemblywoman — if it weren’t all for show. The Democratic supermajority doesn’t care about the process, transparency or scrutiny when they want something passed — especially when they don’t want you looking at it too closely. Look no further than the state budget, arguably the most important piece of legislation in any given year, which had its first committee hearing last week.

Last Wednesday afternoon, Assembly Speaker Robert Rivas and Senate Pro Tem Mike McGuire announced that the two legislative houses had agreed on a budget proposal. Less than 24 hours later, on Thursday morning, the Assembly Budget Committee took up the budget package.

What about the analysis that bills normally receive before being heard? Well, the Department of Finance and the Legislative Analyst Office testified that they had not had time to review the plan.

As for the scrutiny? Assemblyman Jesse Gabriel, the chair of the budget committee, and the Democratic chairs of the budget subcommittees went around reading congratulatory statements that offered few specifics. In all, it took about 42 minutes for the committee to “scrutinize” and approve a plan that burns through half the state budget reserve in just one year, and at a time when the LAO is predicting budget shortfalls every year through 2027-2028.

But what about the public’s ability to review and analyze this bill and to provide public comment? Well, there was a public comment period — after the committee had already voted on the package.

The vote was 18-4, along party lines. But what we got last week isn’t even the actual budget. It’s the Legislature’s draft budget. The governor has his own draft, too. Now, the substantial provisions of the budget will be negotiated behind closed doors among the two Democratic legislative leaders and Gov. Gavin Newsom.

Even though the budget will be subsequently amended in future weeks — and even years — by a series of “junior budget bills” and “trailer bills,” the actions last week mean that the Legislature has technically complied with the June 15th deadline, even though everyone knows it’s all fake. From the legislators’ perspective, technical

compliance has the most serious consequence imaginable; specifically, they can receive their paychecks. That's because Proposition 25, entitled the "On-Time Budget Act of 2010," says legislators forfeit their pay if they do not pass the budget "on time." The problem with that is that the courts have ruled it is the Legislature itself that defines what is and is not the budget.

What we get is not a true annual spending plan for the state but a 1,000-page sham full of blanks to be filled in later through hundreds of "budget trailer bills."

But what about Pellerin's insistence on "transparency?" What about the "scrutiny?" What about a proper "analysis?" What about the "public's ability to review" and "provide comment?" What about the "process?"

Never mind, apparently. Pellerin voted for the budget package in committee.

Under California's one-party rule anything that remotely looks like good government goes out the window. After all, it's (D)ifferent when they do it.

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